

CASE SUMMARY

State (BSES YPL) v. Gaffar Miya

SC No. 445/2022 | FIR No. 489/2019, PS Dayal Pur | Court of the Addl. Sessions Judge-05 (Electricity), East, Karkardooma Courts, Delhi

|                  |                                                                                                                                                                                                                                   |
|------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| COURT            | Court of the Additional Sessions Judge-05 (Electricity), East District, Karkardooma Courts, Delhi                                                                                                                                 |
| JUDGE            | Sh. Ashish Rastogi, Addl. Sessions Judge-05 (Electricity)                                                                                                                                                                         |
| DATE OF JUDGMENT | 9 June 2026 (date of inspection / offence: 4 November 2019)                                                                                                                                                                       |
| PARTIES          | State (BSES Yamuna Power Ltd.) v. Gaffar Miya S/o Sh. Allauddin, R/o H. No. 257, Gali No. 3, Old Mustafabad, Delhi-110094                                                                                                         |
| STATUTES INVOKED | Section 135 (and third proviso to s. 135(1)), Electricity Act, 2003; Section 24, IPC; Sections 65B, 106 & 4, Indian Evidence Act, 1872; Sections 251, 313 & 41A, Cr.P.C.; Regulations 60–63, DERC (Supply Code) Regulations, 2007 |
| RESULT           | <b>Convicted under Section 135, Electricity Act, 2003.</b> Civil liability on the theft bill (Rs. 55,332/-) already settled and deposited by the accused during trial. Matter posted for hearing on quantum of sentence.          |

CHARGE BEFORE THE COURT

Whether the accused Gaffar Miya dishonestly abstracted electricity by directly tapping the licensee’s line through illegal Teflon wires — his premises having no meter installed — so as to attract the offence of theft of electricity under Section 135(1)(a) of the Electricity Act, 2003; and, correspondingly, whether, once the prosecution proved the existence of an unauthorised means of abstraction, he discharged the statutory onus cast on him by the presumption in the third proviso to Section 135(1). A subsidiary evidentiary question was whether the videography of the inspection was admissible despite the absence of a certificate under Section 65B of the Indian Evidence Act.

FACTS

On 4 November 2019 at about 8.42 a.m., an enforcement/inspection team of BSES Yamuna Power Ltd. (the complainant company), headed by Sh. R.B. Yadav (the then Assistant Manager), inspected the accused’s premises at H. No. 257, 2nd Floor, Gali No. 3, Old Mustafabad, Delhi. No electricity meter was installed for the inspected second-floor premises; the accused was found drawing electricity directly through white Teflon wires tapped from the input terminal of meter No. 25228263 — a meter installed at the ground floor for the ground floor alone. The connected load was assessed at 2.730 KW, used for domestic purposes. The proceedings were videographed by Sh. Bani Singh, and an Inspection Report, Load Report, Seizure Memo and Advisory Notice were prepared at the spot. Following DERC guidelines, the company assessed a theft demand of Rs. 55,332/- and raised a theft bill, which the accused did not pay; its Authorised Officer thereupon filed a complaint under Section 135 of the Act.

A notice under Section 251 Cr.P.C. was served on 24 January 2025, to which the accused pleaded not guilty and claimed trial. The prosecution examined five witnesses: PW-1 R.B. Yadav (Assistant Manager and head of the inspection team), who proved the videography CD (Ex.PW1/A), inspection report (Ex.PW1/B), load report (Ex.PW1/C), seizure memo (Ex.PW1/D), advisory notice (Ex.PW1/E), theft bill (Ex.PW1/F) and complaint (Ex.PW1/G), and identified the seized white Teflon wires (Ex.P1); PW-2 Bani Singh (videographer); PW-3 ASI Vijayant Kumar (Investigating Officer), who proved the FIR, site plan, the Section 41A Cr.P.C. notice and related documents; and PW-4 Mohd. Fareed and PW-5 Mohd. Mansoor, neighbours, who deposed that the accused owned the inspected premises and that they had been his tenants until 2015. In his statement under Section 313 Cr.P.C. the accused denied all incriminating material and pleaded false implication. His counsel filed written arguments to the same effect, while admitting that during the pendency of the trial the accused had settled the civil liability on the theft bill and deposited the settlement amount with the company.

## REASONING OF THE COURT

### HEADNOTE

Where a licensee proves an unmetered, direct tap on its line, the reverse-onus presumption in the third proviso to Section 135(1) compels a finding of dishonest theft unless the consumer proves a lawful, metered source; an accused who leads no defence evidence does not discharge that burden. Inspection videography is admissible despite the want of a Section 65B certificate where no objection to its mode of proof was taken when the record was tendered (*Sonu @ Amar*), and incriminating suggestions put by defence counsel in cross-examination bind the accused (*Balu Sudam Khalde*).

**The inspection videography was admissible despite the missing Section 65B certificate.** Following *Sonu @ Amar v. State of Haryana*, AIR 2017 SC 3441, the Court reasoned that an objection to the want of a 65B certificate goes to the *mode of proof*, not to inherent admissibility, and must be taken when the electronic record is tendered and marked. As the defence raised no such objection when the CD was proved through PW-1 and PW-2, it could not be taken later, and the videography stood proved.

**Section 135(1)(a) required a dishonest abstraction through an unauthorised connection.** The Court identified the ingredients as a dishonest tapping of, or connection with, a licensee's lines so as to abstract, consume or use electricity, punishable with imprisonment up to three years, or fine, or both. "Dishonestly" being undefined in the Act, it imported Section 24 IPC (wrongful gain to one person or wrongful loss to another); as the allegation was of hooking an illegal wire, clause (a) applied. Under the third proviso to Section 135(1), proof of an artificial or unauthorised means of abstraction raises a presumption of dishonest use "until the contrary is proved."

**The inspecting officials' evidence was corroborative and unshaken, and the defence's own cross-examination admitted the inspection.** The Court found PW-1 and PW-2, the inspection team's prime witnesses, mutually corroborative and unshaken as to the factum of inspection, the manner of direct tapping, the 2.730 KW load and the seizure of the wires, none of which the accused disputed; the videography CD (Ex.PW1/A) was played in court, PW-1 identified the accused in it, and the seized one-foot Teflon wires were produced and identified. Relying on *Balu Sudam Khalde v. State of Maharashtra*, 2023 INSC 314, it held that the defence's suggestion to PW-1 — that the wires ran from the input terminal of the ground-floor meter — was itself incriminating and, since suggestions put by defence counsel bind the accused, admitted the factum of inspection.

**The absence of an independent public witness did not weaken the prosecution.** No animosity of the officials towards the accused was shown, and on *Punjab State Electricity Board v. Ashwani Kumar*, 2010 (7) SCC 569, an inspection report made in discharge of official duty carries a presumption of regularity that the consumer must rebut

by cogent evidence; on *Sushil Sharma v. BSES Rajdhani Power Ltd.* (Delhi HC, CrI. A. 1060/2010, decided 22.12.2010), non-examination of a public witness is no infirmity where the inspecting officials are trustworthy. Not even a suggestion of procedural lapse under DERC Regulations 60–63 was put in cross-examination.

**The presumption was compulsory, and the accused led nothing to rebut it.** Following *Neeraj Dutt v. State*, SLP(CrI.) 6497/2020, the Court explained that “shall presume” is a compulsory presumption it is bound to draw until disproved, while *Hiten P. Dalal v. Bratindranath Banerjee*, 2001 (6) SCC 16, sets the rebuttal standard at evidence making the defence reasonably probable to a prudent man. The accused led no defence evidence; it was admitted that no meter existed, yet appliances were running, and no Genset or other lawful source was claimed. Applying *Mukesh Rastogi v. North Delhi Power Ltd.*, 2007 (99) DRJ 108, with Section 106 of the Evidence Act, the Court noted that the obvious rebuttal — producing paid electricity bills — was never attempted, and that the accused’s settlement of the theft bill, rather than protest against a supposedly false claim, fortified the prosecution case. The presumption thus stood unrebutted.

## INTERPRETATION OF THE ELECTRICITY STATUTES

### ELECTRICITY ACT, 2003

#### Section 135(1)(a) — Theft of Electricity

The Court treated clause (a) — tapping or making a connection with a licensee’s overhead, underground or service lines/wires — as the operative limb, the case being one of direct hooking rather than meter tampering (clauses (b)–(e) having no factual foundation). As the Act does not define “dishonestly,” the Court imported Section 24 IPC and treated the drawing of supply through an unmetered illegal Teflon-wire tap as satisfying the requirement of dishonest intention.

#### Third Proviso to Section 135(1) — Presumption of Dishonest Use

Read as a reverse-onus clause: proof of an artificial or unauthorised means of abstraction raises a presumption of dishonest use “until the contrary is proved.” Reading it with the “shall presume” jurisprudence (*Neeraj Dutt*) and the rebuttal standard (*Hiten P. Dalal*), the Court held that the burden shifted to the accused to make his innocence reasonably probable — a bare denial, without evidence of a lawful source or paid bills, could not discharge it.

### DERC (SUPPLY CODE) REGULATIONS, 2007 — REGULATIONS 60 TO 63

The Court reproduced Regulations 60–63 and treated the team’s compliance as the evidentiary backbone of the conviction. **Regulation 60** confers on the Authorised Officer the power to inspect suo motu or on information, on carrying and showing photo identification. **Regulation 61** requires a contemporaneous site inspection report, with seizure and sealing of material evidence and photographic/video documentation. **Regulation 62** permits prosecution only where dishonest intention is evident, requires disconnection and a written police complaint within twenty-four hours, and provides the safeguard that a missing meter seal alone cannot found a theft case absent corroboration. **Regulation 63** fixes the assessment at twice the applicable tariff for up to twelve months, with credit for units already paid. The absence of any cross-examination suggesting procedural lapse was treated as confirming the inspection’s regularity, and the Rs. 55,332/- assessment as a measure of the theft rather than an ingredient to be separately proved.

## HELD

The prosecution proved beyond reasonable doubt that no electricity meter existed at the accused’s premises at the time of inspection and that Gaffar Miya was found indulging in direct theft of electricity through an illegal wire — an offence punishable under Section 135 of the Electricity Act, 2003. The accused, having led no evidence, failed to rebut the statutory presumption under the third proviso to Section 135(1). Accused Gaffar Miya is accordingly **convicted under Section 135 of the Electricity Act, 2003**, and is to be heard on the quantum of sentence.

## SIGNIFICANCE

The judgment is a working illustration, at trial-court level, of how Section 135 is proved and rebutted in a direct-tapping case. Five propositions stand out:

- **Section 65B certificate is not indispensable.** The absence of a 65B certificate for inspection videography is not fatal where the defence did not object when the electronic record was tendered — the objection goes to the mode of proof and is waived if not timely taken (*Sonu @ Amar*).
- **Defence cross-examination can prove the case.** Incriminating suggestions put by defence counsel — here, that the wires ran from the ground-floor meter’s input terminal — can themselves establish the factum of inspection and bind the accused (*Balu Sudam Khalde*).
- **The reverse-onus presumption does real work.** Once the licensee proves an unauthorised means of abstraction (an unmetered direct tap), the “shall presume” clause compels a presumption of dishonest theft; the consumer must rebut it with evidence of a lawful, metered source — typically paid bills under the Section 106 onus (*Mukesh Rastogi*) — and a bare denial with no defence evidence will not suffice.
- **A public witness is not essential.** Non-joining of an independent witness does not vitiate an otherwise trustworthy official inspection carried out without any shown enmity (*Ashwani Kumar*; *Sushil Sharma*).
- **Settling the theft bill can cut against the accused.** Payment of the civil liability during trial was read not as closure but as conduct corroborating guilt on the criminal charge.

## CITATIONS

Neither the prosecution nor the defence relied on any case law in their arguments (paras 14–15 of the judgment); every citation below is drawn from the Court’s own reasoning.

| CASE                                                                       | PRINCIPLE CITED FOR                                                                                                                                                                                               | TREATMENT |
|----------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------|
| <i>Sonu @ Amar v. State of Haryana</i><br>AIR 2017 SC 3441                 | An objection that an electronic record was admitted without a Section 65B certificate goes to the mode of proof and must be raised when the record is tendered; if not taken at trial, it cannot be raised later. | Relied on |
| <i>Balu Sudam Khalde v. State of Maharashtra</i><br>2023 INSC 314          | Incriminating suggestions put by defence counsel in cross-examination bind the accused and can themselves establish facts such as the factum of, and presence at, the inspection.                                 | Relied on |
| <i>Punjab State Electricity Board v. Ashwani Kumar</i><br>2010 (7) SCC 569 | An inspection report prepared by Board officers in discharge of official duty carries a presumption of regularity; the onus lies on the consumer to rebut it by cogent evidence.                                  | Relied on |

| CASE                                                                                                   | PRINCIPLE CITED FOR                                                                                                                                                                     | TREATMENT |
|--------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------|
| <b><i>Sushil Sharma v. BSES Rajdhani Power Ltd.</i></b><br>Delhi HC, CrI. A. 1060/2010<br>(22.12.2010) | Non-examination of an independent/public witness is no infirmity where the inspecting officials are trustworthy and bear no enmity towards the accused.                                 | Relied on |
| <b><i>Neeraj Dutt v. State</i></b><br>SLP(CrI.) 6497/2020                                              | “Shall presume” denotes a compulsory legal presumption which the Court is bound to draw until the fact is disproved.                                                                    | Relied on |
| <b><i>Hiten P. Dalal v. Bratindranath Banerjee</i></b><br>2001 (6) SCC 16                              | A statutory presumption need not be conclusively disproved; the accused must adduce evidence making his defence reasonably probable to a prudent man.                                   | Relied on |
| <b><i>Mukesh Rastogi v. North Delhi Power Ltd.</i></b><br>2007 (99) DRJ 108                            | The easiest rebuttal of the theft presumption is to produce paid electricity bills; under Section 106 of the Evidence Act the onus of proving lawful, metered use lies on the consumer. | Relied on |

*This summary is a condensed digest prepared for quick reference. It is not a substitute for the full text of the judgment and should not be relied upon for legal advice without verification against the original.*